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CONTRACT CANCELED.

Judge Walker Decides In Favor of Mrs. Nancy Evans.

Long Contested Suit Over James R. Evans' Estate Finally Settled Wednesday.

The case of Mrs Nancy Evans, Dora Evans and L. B. Evans against W. S. Neel, administrator, B. A. Evans and Del Evans, all heirs of the estate of Jas. R. Evans, deceased, which has been on trial for several days before Special Judge Chas. S. Walker, was finally determined in the circuit court Wednesday, when the court decided in favor of the plaintiffs, and adjudged that a contract made by Mrs. Nancy Evans in the settlement of her share of the estate was procured by fraud and ordered it to be canceled and held for naught. The case was then ordered referred to the master commissioner with directions that he report a complete settlement of the estate with the administrator, W. S. Neel. The suit has been pending for some time and involves an estate worth about $20,000. By the decision of Judge Walker, the heirs will share equally, and Mrs. Evans will get one-half of the surplus realized from the sale of personal property and is entitled to her dower interest, of one third of the real estate, meaning a gain of about $6,000.

The case has attracted considerable interest, because the parties are well known, it being a legal fight between brothers and sisters. There were six speakers in the case, the plaintiff being represented by Messrs. Miller & Todd and Judge Little and the defendants by Sweeney & Ellis and Wathen & Morrison. The case will be taken to the court of appeals.

In the circuit court Tuesday morning Judge Owen handed down a written opinion in the case of R. Monarch against the Owensboro City Railway sustaining the plaintiff's motion transferring the action from the equity to the common law docket. The suit has been pending for several years and was for the purpose of compelling the City Railroad company to carry out a certain contract and for $30 000 damages for its failure to do so.

At one time Mr. Monarch secured from the city council a franchise to build a street car line over certain streets, not occupied by the City Railway company with the understanding that rails would be laid within eighteen months after the grant. The petition alleges that by an agreement with the defendant after Monarch had secured the right of way, tendered them a deed to same, it was to build its line on Lower Fifth street, which afterwards it refused to do. In the meantime the eighteen months given him by the city council had elapsed, and he had forfeited his franchise. The suit was then brought for the enforcement of the contract and damages, and is now pending in the name of the Columbia Finance and Trust company, as assignee of Monarch. The matter will come up before a jury at the June term of court.

In the cases of Joseph Roberts against W. H. Q. Johnson and American Steel Hoop company against Harry Guenther & Bro., the defendant's motion for a new trial were overruled and the appeal was granted to the court of appeals.

In the action of Leslie Carden against the Marsden Co., the plaintiff's motion for a new trial was overruled, and an appeal granted.

In the case of William Hemmingway against O. H. Tong, a mandate of the court of appeals was filed affirming the judgment of the circuit court.

In the case of L. W. Riddle against Thos. Riddle &c., the special commissioners acknowledged a deed to the purchaser.

In the case of S. Saulsberry against J. R. Tennelly the court held the plaintiff's reasons for not giving a bond for the purchase of certain property were good, and the sale was set aside and land ordered to be resold.

An order of general distribution was entered in the case of R. A. Bryan's executor against his heirs &c.

Master Commissioner Owen filed his report of claims in the following cases: W. E. Aud, administrator, against Lou Mattingly; Central Trust company against Rilla Carpenter, and also a report of sale in the case of Cary & Marble against S. P. Knutt.

There are no new features in the case, except the evidence of Dr. John Friedman, who made an analysis of the child's stomach and he was unable to find any meconic acid, or any symptoms that the child had been poisoned.

Drs. Stuart, Irvin and Cox stated that they examined the child, and could not find any opium poisoning. Prof. Singleton and his little son also testified, the latter stating that Mrs. Cossler sent him after the small vial of laudanum, which was produced at the trial, being three-fourths empty.

The court overruled the defendant's motion to dismiss the case, and Mrs. Cossler was placed on the stand. She denied that she gave the child any poison, but only gave it a dose of meat grease. It is the opinion of those who heard the evidence that Judge Haskins will dismiss the woman.

In the circuit court Clarence W. Wells and Geo. H. Cox were each allowed $5 per day for four days' services as commissioners in the contest brought by Thos. S. Pettit against Martain Yewell. Their fees amount to $20 each, and the order recites that it is to be paid by Pettit and taxed as costs. This will make the total cost in the case amount to $297, all of which must be paid by Pettit, as Judge Owen in rendering his decision in favor of Martin Yewell, also gave him judgment for all of his costs. This amount does not include the costs of copying the record in the event that Pettit should take the case to the court of appeals, which will make an additional fee of $100, making the total cost of the case over $400, to be paid by Pettit, not including his lawyer's fee.

In the action of James Johnson against Nelson Wilhite, the judgment was satisfied and the order continuing the case was set aside.

In the action of W. A. Wickliff against Thomas A. Morgan, the defendant filed an executed notice on the plaintiff and moved the court to set aside the judgment rendered at this term on the grounds of a clerical misprisin. The plaintiff moved to quash the notice.

The action of the Continental Tobacco company against the city of Owensboro was submitted on motion to strike out certain parts of both the petition and answer.

In the action of R. E. Berry, assignee, against A. F. Page &c., the assignee's report of sale was set for exceptions Saturday.

The action of J. H. Hickman, assignee, against C. H. Todd &c., was submitted on exceptions heretoforq filed to the masteh commissioner's report.

In the action of Mrs. W. R. Thompson, administrator &c., against E. H. Luckett &c., the master commissioner was ordered to execute deeds jointly to E. C. Blandford and Mary V. Riney for entire unpaid purchase money.

The action of I. Gans against B. R. Wiles was dismissed settled.

In the action of W. R. Stephens against Peter Schnapp the plaintiff's exceptions to the commissioner's report of settlement was argued and the court took same under advisement.

The cases of J. E. Clarke against Henry Brey and A. F. Thompson against Henry Brey were continued.

In the case of Joe Roberts against W. H. Q. Johnson, the plaintiff acknowledged payment on judgment of $150 and no execution is to issue until ordered.

In the action of the Commercial Electrical Supply company against Fred G. Kollenberg &c., the plaintiff was given judgment against T. A. Pedley and H. K. Cole for $200.

In the action of R. A. Bryan, executor, etc., against his heirs, etc., the master commissioner acknowledged deeds to J. W. May, P. C. Bryan and R. A. Bryan.

In the action of the Baptist Minister's Aid society against Willis Smith etc., the exceptions to the master commissioner's report, were overruled.

In the action of Russ Talbot against I. J. Owen the court sustained a demurrer to the petition and the plaintiff was given leave to file an amendment.

In the action of W. E. Aud, administrator, etc., against Lou Mattingly etc., the master commissioner was ordered to sell two parcels of land to pay the debts held against the estate of R. W. Long, deceased.

In the case of L. E. Kincheloe against S. Kincheloe, so much of the judgment as continued the action was set aside.

In the action of Leona Tichenor against W. H. Iglehart, etc., the plaintiff filed the mandate of the court of appeals affirming the judgment of the circuit court.

In the case of the Frank Fehr Brewing company against Mullican, Daviess, an agreement was filed and mandate issued.

COUNTY COURT.

George Martin Taylor qualified as executor of the estate of his father, R. W. Taylor, deceased, being nominated in the will as executor to qualify without executing bond.

The Daviess County Bank and Trust company, by its president, T. S. Anderson, qualified as executor of the estate of Jacob Leobfried, deceased, his children, Wm. George, Jacob, Jr., and Rose Leibfried and Mrs. Settie Milne, waiving their right to qualify. On motion of the executor, the court appointed R. E. Alexander, Rolla D. Bryant and Perry Thomas appraisers of his personal estate.

Mr. Aubrey Ford was appointed administrator of the estate of N. O. Ford.

Mrs. June Warren was appointed administratrix of the estate of John G. Warren.

Will Clark, Thomas Pierce and Peter Jacobs were appointed appraisers of the personal estate of John G. Warren.

Claims allowed: Barney Wathen, road work, $1.80; D. Cecil, road work, $1; D. H. Brown, sheriff of election, $4; Hampton McFarland, boarding mules and corn, $61.40; J. E Monarch, surveying, $9; J. H. Oglesby, provisions, $18.50; John Ridgeway, road work, $3.50; Marvin Nantz, road work, $3; John L. Morris, caring for pauper, $12; J. H. B. Winkler, land, $75; M. E. Duvall, trimming trees in court house yard, $10.

W. H. Owen gave bond with B. Baer as surety and qualified as executor of the estate of Mrs. Martha J. Brown, deceased.

Charles Deuser, J. S. H. Kigel and John Whitehead were appointed appraisers of the personal estate of N. O. Ford.

MINERS' CONVENTION.

President Wood Tells of the Arrangements For It.

Will Be Held in the City Hall and the Sessions Will Be Public

The meeting of the miners in this city will be the first that has ever occurred here, and it will attract a good deal of attention. There will be from sixty to seventy delegates in attendance, and there will be many miners besides. As has been stated the sessions will be held at the city hall. The local labor unions will decorate the hall and will provide seats for the delegates and spectators. President Wood says that all of the sessions of the body will be open except those at which the wage scale is to be considered. The people are invited to attend and will be made espcially welcome. The first session will last eleven days, and then the miners will meet the operators, who will be in the city at that time. Propositions will be submitted for the government of both parties for the ensuing year, including the rate of wages to be paid and the rules of the mines.

President Wood says that a number of the miners are good speakers, and that many of the discussions will be of general interest. The sessions will begin at 9 o'clock each day and continue until 12, when there will be a recess of two hours, after which the convention will remain in session until 5 o'clock. This matter is, of course under the control of the committee on rules, but this is the usual programme, and will no doubt be followed here.

The convention is held annually, and the agreements are made to take effect April 1 and are binding for one year. Sometimes the operators do not accede to the demands of the miners, and the strike follows on the date named. It is not thought that there will be anything of this kind this year, as there will be little if any important change, either in the scale of prices or the rules governing the mines.

AFRAID TO BE OUT.

Robbers and Sneak Thieves Stayen Home While It Was Dark.

One of the extraordinary features of the long siege of darkness to which the city has been doomed since the great sleet storm is the almost total lack of offenses against property rights, which are usually supposed to grow and thrive in the dark.

The police report no serious attempts to rob houses nor has there been one offense of the sand-baggers' kind. This speaks well for Owensboro.

Another police feature is that the officers have had much less to do for another reason. The telephones being all down, nervous persons or those with a hankering for a little notoriety could not call up the police as heretofore on any slight pretext. This practice has caused much useless tramping or street car riding by the officers which they have been spared during the present no-telephone era of Owensboro's twentieth century history.

MUST LOOK TO RAILROADS.

Hartford, Ky., Man Says Steamers Should Ply Rough River.

W. D. Luce, a prominent contractor of Hartford, Ky., is in the city as the guest of his cousin, Judge Robert D. Richardson. He will remain several days, says the Evansville Courier.

"Business is pretty good up our way and we have no complaints to make. Since the steamboats have been taken out of Rough river we are forced to haul our freight from Beaver Dam, where the Illinois Central railroad touches. The merchants could keep a boat in the Rough river trade I believe if they only would stick together. The river is navigable and in good shape.

TAXING THE COSTS.

The Clerk's Office Making Out the Bill in the Contest Case.

Deputy Clerk O'Connell Daugherty is taxing the costs in the Pettit contest case, and finds that the total amount is $257, exclusive of the amount to be allowed the commissioners, Geo. H. Cox and Clarence Wells. It is understood that Mr. Cox will not take anything. Had it not been for the ballots the costs would have been only about $60 as the clerk gets five cents each for filing them, and at this rate they amount to about $150.

Mr. Pettit has not yet ordered a copy of the record, and it is not known whether he will do so or not.

NEW SUITS.

J. C. Rudd, Son & Co. sue Hawes & Birk on a note for $69.75.

—Mr. Charles Kissinger, of Fordsville, has taken a position in the C. B. Rouss store on East Main street.

For a clear complexion, bright sparkling eyes and vigorous digestion, take Prickly Ash Bitters. It puts the system in perfect order. Jno. A. Head.

COMING TO OWENSBORO.

Mr. Chas. A. Dailey Acquires an Interest in the Messenger.

The Courier-Journal says:

"Mr. Chas. A. Dailey, telegraph editor of the Courier-Journal and one of the brightest and most substantial members of Louisville's newspaper guild, has acquired an interest in the Owensboro Messenger, and will become the managing editor of that paper.

"Mr. Dailey will be in complete control of the editorial department of the Messenger, and it is predicted by those who are acquainted with his ability that the new field will give him a broad opportunity to attain more and richer successes His well-trained appreciation of the news and his thorough understanding of the editorial and mechanical department of a metropolitan newspaper, combined with native shrewdness, judgment and energy, should also insure further success for the newspaper with which he will become connected.

"Mr. Dailey, accompanied by Mrs. Dailey and Master Bernard Dailey, will leave next week for Owensboro."

WAIVED TRIAL.

Postmaster's Wife in Trouble With the Government.

Mrs. Effie Crowder, wife of the postmaster at Balzetown, Ohio county, was brought to the city Wednesday evening on the I. C. train by Deputy U. S. Marshal LaRue, who arrested her for violation of the postal law. She waived examination and was held to answer to the May term of court under $200 bond, which she gave, her husband being her surety. A letter that came to the postoffice was never delivered, and it is charged that Mrs. Crowder was responsible for its disappearance.

THE BOTTOMLESS MUD.

The Roads Have Thawed Through in Places and Make Trouble.

The mud on some parts of the county roads is said to be almost bottomless. While the freeze lasted the roads were good, but as soon as they began to thaw they became bad. As the thaw progresses they will become worse, and in a week's time many of them will be impassable. This is particularly the case where there is clay subsoil, which held the water in the ground when the freeze commenced.

DEEDS.

H. A. Williams to W. B. Roby, lot in city; $550.

Sarah Jane Bryan, etc., to J. W. May, 98 acres; $2,472.93.

Sarah Jane Bryan, etc., to R. E. Bryan, 25.9 acres; $1,356.85.

Sarah Jane Bryan, etc., to P. C. Bryan, 35.54 acres; $1,420.22.

COURT OF APPEALS.

Sarah E. Pate to Richard Banks, two lots in Stanley; $500.

John G. Weir, etc., to Emily H. Pardon, lot in Owensboro; $1 and other considerations.

J. R. Laswell to J. R. Snook, house and lot in Owensboro, $750.

Lena Coombs to Mollie Ayers, house and lot in city, $541.

B. E. W. Stout to P. L. Chapman, 20 acres land; $250.

QUARTERLY COURT SUITS.

B. C. Hicks sues Clarence Galloway on an account for $3.35.

G. M. Cummings sues Mrs. N. A. Parks on a bill of exchange for $65.

A. A. Davis sues Charles Ebelhaar and Sophia Ebelhaar to recover $20.45, amount of taxes paid by the plaintiff on property belonging to the defendants.

Milwaukee Harvester company sues Alfred Thruston on a note for $57.50.

Wm. Lyons sues H. P. Barrett for $51.60.

A Model Mill.

It would be difficult to find a more modern flour mill than the Star Mills, owned and operated by Messrs. Field, Field & Son of this city. Every machine about the plant is new and of the latest imprved and labor-saving pattern. The mill is compactly and conveniently constructed and is equipped with many labor-saving devices, such as electric bells for signals, automatic measures, scales, etc. These improvements have improved the quality of their flour as well as increased the capacity of the mill.

She Accuses Her Husband.

Louisville, Feb. 26.—Mrs. James Reagan, wife of a Wolfe county lumberman, was found in a room at Welch's Tavern yesterday with her throat cut from ear to ear. The woman, who will probably die, charges her husband with having committed the deed after a quarrel between them, and he was arrested.

Ducks Coming In.

Ducks are beginning to arrive from the south, and many of them are seen in the sloughs on both sides of the river below the city. The duck hunters are preparing for them, and are wishing for a day or two of rough weather, which will bring them in great numbers by stopping their flight to the north.

The family that keeps on hand and uses occasionally the celebrated Prickly Ash Bitters is always a well-regulated family. Jno. A. Head.

DON'T GAMBLE
ON PROSPECTS
But Invest on
Production!
NOTHING as PERMANENT,
PERPETUAL AND
PROFITABLE AS
OIL!
When You Get It. We Have Got It. The Best on Earth
PAY OIL!
7 WELLS 7
Additional wells have been contracted for immediate completion. Till the next well comes in we will sell any part of our fully paid stock up to $5,000 on monthly payments of
ONE DOLLAR PER MONTH PER SHARE!
Shares being $10.00 each, par value. This is to let the very ones who need it have a chance to make a dollar. Remember, we have oil to
Pay 10 Per Cent. On Every Share Issued
or offered, and the next well in will double the value of your purchase. Fortune knocks once at every door, and she is hitting yours now. This only lasts till the next well comes in. All shares sold at this price.
ISOLA OIL & COAL CO.
BEECH GROVE, KY.
Send all payments to Cashier McLean County Bank, Beech Grove, Ky

FERTILIZERS For Wheat, Tobacco, Corn, Vegetables, etc.
Manufactured by
NATIONAL FERTILIZER CO., Nashville, Tenn.
For Sale by THE EUREKA FLOUR AND FEED STORE, Owensboro Ky.

Books, Stationery and
PRINTING.
Is our business and we are making it known.
We have what you want and can save you big money.
GEO. H. COX & CO.
Booksellers, Stationers and Printers, 122 West Main Street.

DEATHS.

Frank Wade of Stanley, died Wednesday after an illness of several months. He was fifty-four years old, and was a good citizen. His funeral took place Thursday at 9 o'clock from St. Peter's church and the burial was at the Lancaster cemetery. He leaves a wife and six children.

Mr. William S. Johnson died Wednesday night at 10 o'clock at his home in the Habit neighborhood of consumption. The deceased left a wife and four children, Paul, Cecil, Horace and Kittie Johnson. Mr. Johnson was 56 years of age and a prominent farmer and church worker. The remains will be interred at Elmwood cemetery about 11 o'clock today, with a short burial service conducted by Rev. P. T. Hale.

Mrs. Artemica Wilson died Wednesday at her home four miles south of the city, aged 77 years, of grippe. The funeral took place Thursday morning at 10 o'clock from the residence.

Suit for Damages.

W. N. Seals has sued the Owensboro Brick and Sewer Pipe company for $3,000 for injuries sustained while in the employ of the company. He says that he was helping to put a belt on a pulley when he fell and so injured his hand that one of the bones had to be taken out. At the same time his hip was injured.

—Courtney Masterson has been appointed and qualified as constable of the Oakford precinct.

MARRIAGE LICENSE.

Peter Limback and Mrs. Mary A. Limback.

M. B. Blanton and Jessie Nicely.

TWIN TROUBLES.

They Work Havoc All Over the Country and In Owensboro.

Weak, nervous, the digestion out of order—that is what ails a host of people. It comes about in this way. First from overwork or other causes; the nerves are burdened beyong endurance; nerve waste is not replaced; nerve force is weakened; then the stomach loses its nerve controlling power and indigestion follows with falling strength. When first Dr. A. W. Chase's Nerve Pills came to Owensboro people could hardly be convinced that this great medicine would remove these troubles. Now it is an accepted fact because of their cure of very stubborn cases no other medicine would influence.

Mrs. A. Levy, of 417 St. Ann street, Owensboro, Ky., says, "I have used Dr. A. W. Chase's Nerve Pills I got at Smith & Bates drug store in my family for nervousness and indigestion and have found it work quite satisfactory. I think these pills are excellent tonic."

Dr. A. W. Chase's Nerve Pills are sold at 50 cents a box at dealers or Dr. A. W. Chase Medicine Co., Buffalo, N. Y. See that portrait and signature of A. W. Chase, M. D. are on every package.

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